



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

August 25, 2021

### **POLICE COMMISSIONER'S PENALTY DEPARTURE**

**Re:** CCRB Case No. 201908620 regarding Police Officer Daniel Leboff, Tax No. [REDACTED] (DADS No. 2020-22797)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that Police Officer Leboff's actions do not warrant a command discipline, but instead call for Training. Officer Leboff, after smelling marijuana emanating from a vehicle, conducted a limited search of an individual to retrieve the car keys and conducted a search of the vehicle's trunk.

After reviewing the facts and circumstances in this case, the Police Commissioner agrees with the CCRB that both searches were improper. However, based on Police Officer Leboff's lack of disciplinary and CCRB history in addition to his belief that the search was conducted in good faith, the Police Commissioner has determined that Police Officer Leboff would benefit from Training as opposed to a command discipline.

Therefore, Police Officer Leboff will receive Training which is in accordance with the mitigated penalty of the Disciplinary System Penalty Guidelines ("Matrix").

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Website: <http://nyc.gov/nypd>

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', with a stylized, flowing script.

Lourdes Soto  
Inspector  
Commanding Officer  
Police Commissioner's Office